

Fenwick v. Sears's Administrators.

of——, in the year of our Lord 1800, intestate; and afterwards, to wit, on the 8th day of November, in the year aforesaid, administration of all and singular the goods and chattels, rights and credits of the said intestate, was *261] granted to the said John Stricker and Henry *Payson, in due form of law, by William Buchanan, register of wills for Baltimore county aforesaid; an exemplification of the letters of administration granted to the said Stricker and Henry Payson as aforesaid, duly authenticated, is now here to the court produced; and this they are ready to verify; wherefore they pray judgment," &c. To this replication, there was a general demurrer and joinder; which demurrer was overruled by the court below. (a)

On the trial of the issue in fact, five bills of exception were taken by the defendant's counsel. 1. The first stated that the defendant objected to the second bill of the set of exchange going in evidence to the jury, unless the plaintiff first offered evidence to account for the first and third of exchange, and to show that they, or either of them, were not paid, or passed in the course of business to some other person who still holds the same; but the court overruled the objection, and suffered the second bill to be read.

2. The second bill of exceptions stated, that the defendant objected to the admission of the two protests in evidence, because, as he alleged, Samuel Hanson, of Samuel, was not a notary-public, on the 30th of March 1798, nor on the 2d of June 1798, and to prove this, the defendant offered to give evidence, to prove that the said Hanson, previous to the 30th of March 1798, had been named and appointed by the governor of the state of Maryland, by and with the advice and consent of the council of Maryland, a notary-public, but that he never did take the oath or oaths prescribed for a notary-public to take, until after the 3d day of June 1798; but the court were of opinion, that the evidence so offered to prove that the said Hanson was not a notary-public, was not admissible for that purpose, and refused to let the said evidence be given; and the protests were permitted to be read to the jury.

3. That the defendant's counsel prayed the court to direct the jury, that *262] the protest for non-payment is not such *a protest as by the law of merchants is required, and was not made within the time by the law and custom of merchants required, and therefore, that the plaintiffs cannot in this case recover of the defendant upon the said bill of exchange; but the court refused to give such instruction.

4. The fourth bill of exceptions stated at great length the testimony of several witnesses, tending to show notice of the non-payment given to the defendant in this country, some time in 1800 or 1801, and that the defendant had made some propositions for settling the bill. That the drawees had no funds of the drawer in their hands. That the drawees held a deed from the drawer of certain lands in Georgia and North Carolina, and an assignment of a large demand on the French government, and of another large demand against an individual in France, which they held in trust to pay certain debts due from the drawer, and to pay him the surplus, if any. That they had permitted the drawer to go to France, and attend to these claims, and sell the lands, but that it was understood between them and the drawer, that he

(a) The jurisdiction of the several states of Virginia and Maryland over the territory ceded by them to the United States, for the seat of government, ceased on the first Monday of December 1800. *United States v. Hammond*, 1 Cr. C. C. 15.

Fenwick v. Sears's Administrators.

should bear his own expenses, but that they did not inform the defendant of that circumstance. That at the time he went, they thought favorably of the trust, and wrote, by the drawer, to the defendant, expressing their opinion of it, and inclosing to the defendant a power of attorney to act for them in the business, and to receive any moneys that might be recovered under the trust, and informing him that the drawer would attend and look after the said concerns. That at the time of presenting the bill, they had not received any money under the trust, but were in advance on that account. That the bill was indorsed by the defendant, to enable the drawer to raise money in France, for the purpose of supporting his necessary expenses, whilst he was prosecuting there those claims in which the drawees were interested as trustees, and that the drawer sold them for that purpose. That the defendant came to this country on business, in October 1800, and returned to France in May 1802, and during his stay in this country, made Georgetown his place of residence.

That after this bill was drawn, the drawer received in France a sum of between \$2000 and \$3000, in the *beginning of the year 1798; that during the years 1798, 1799 and 1800, French ships were permitted to [*263 sail directly from America to France, for the purpose of carrying Frenchmen home; this happened perhaps twice a year, or oftener. That during these years, there was a communication between America and France for letters, &c., through the medium of London and Hamburg. That after the spring of 1798, American vessels were very often captured by the French armed vessels on the high seas; and that at the time, previous to the year 1798, American ships were embargoed in France.

The defendant then prayed the court to instruct the jury, that upon the whole evidence, as stated, the plaintiffs, by their neglect in not giving notice to the defendant, the indorser on the said bill, that it was protested for non-acceptance and for non-payment, sooner than they did, had released the defendant from all responsibility on the same, and could not recover thereon; which direction was not given as prayed, the court being divided in opinion, whether, in this case, the question of reasonable notice was a matter of law to be determined by the court, or a matter of fact to be determined by the jury. But the court were of opinion, and so directed the jury, that if they should be of opinion, from the evidence, that the defendant who indorsed the bill drawn by F. L. Taney in this suit, knew, at the time of such indorsement, that the said Taney had no effects in the hands of the drawers, on which he could draw, notice of the non-payment, or of the protest therefor, was not necessary to enable the plaintiffs to recover, in this action, on the count for money had and received.

5. The fifth bill of exceptions, after repeating the evidence at length, stated that the defendant prayed the court to instruct the jury, that although they might be of opinion, that Fenwick, the defendant, knew, at the time of his indorsement, that the drawer had no effects in the hands of the drawees, on which he could draw, yet, to support an action on the bill of exchange, against the defendant, it was necessary for the plaintiffs to give him reasonable notice of the protest of the bill for non-acceptance or non-payment, one or the other; and that, under the circumstances of this case, notice to the said Fenwick of *such protest for non-acceptance, or non-payment, in October 1800, was not reasonable notice; where- [*264

Fenwick v. Sears's Administrators.

upon, the court were of opinion, and directed the jury, that if they were satisfied from the evidence, that the defendant, at the time he indorsed the bill, knew that Taney had no effects in the hands of the drawees, upon which he could draw, still it was necessary for the plaintiffs, in order to support their action against the defendant, upon the first count in the declaration, to give him reasonable notice of the protest for non-acceptance, or for non-payment, one or the other ; but whether, under the circumstances of this case, reasonable notice had been given to the said Fenwick, of the said protest, the court gave no opinion ; being divided in opinion, whether the same was matter of law to be determined by the court, or matter of fact to be determined by the jury.

Verdict for the plaintiff, \$439.46, and judgment accordingly ; to reverse which, the present writ of error was brought by the defendant.

Mason, for the plaintiff in error. *Simms* and *C. Lee*, for the defendants.

Mason now waived the consideration of the first bill of exceptions, and relied upon the following points : 1st. That the protests ought not to have been admitted to be given in evidence, because Hanson, who made them, although he styles himself notary-public, was not a notary-public. 2d. That the protest for non-payment was not a sufficient protest to charge the indorser, because it was not made within the days of grace, but on the day after the last day of grace. 3d. That the notice of the non-payment given to the defendant was not given in reasonable time ; and did not come from an indorsee, but from Judah Hays, for whose use this suit is brought. The court, and not the jury, are to decide what is reasonable notice. *4th. The letters of administration granted in Maryland, *265] before the jurisdiction over the district of Columbia vested in the United States, do not authorize the plaintiffs to maintain an action, as administrators, within the district, after the transfer of the jurisdiction.

I. That Hanson was not a notary-public, and therefore, the protest void. A protest by a person having due authority, is the only evidence which can be received of the non-acceptance or non-payment of a foreign bill, to charge the indorser. Kyd 136, 142 (87, 91). The only person who can have such due authority is a notary-public. Kyd 137 (87). With regard to inland bills and promissory notes, the statute of Anne is adopted in Maryland, and the courts of Maryland are governed by the same rules, laws and authorities as the English courts. By the constitution of Maryland, § 48, notaries-public are to be appointed by the governor and council. The 55th section declares, "that any person appointed to any office of profit or trust shall, before he enters on the execution thereof," take the oath therein prescribed, "and shall also subscribe a declaration of his belief in the Christian religion." The act of assembly of Maryland, February 1777, c. 5, prescribes an oath of office to be taken before the officer enters into the execution of his office. The act of assembly, November 1779, c. 25, § 2, ascertains his fees, and the 8th section prescribes the form of another oath to be taken, before entering on the duties of his office, under a penalty of 150*l*.

If a man assumes a character which he does not possess, and a seal to which he has no right, his acts are not obligatory. No man can constitute